

The Maharashtra Tax on Entry of Motor Vehicles into Local Areas Act, 1987

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[The Maharashtra Tax on Entry of Motor Vehicles into Local Areas Act, 1987](#)

[Maharashtra Act](#)

[No. 42 of 1987](#)

[For Statement of Objects and Reasons, see Maharashtra Government Gazette, Part V, Extraordinary dated the 9th November 1987, page 325.](#)

[\[This Act received assent of the President on the 18th December 1987; assent first published in the Maharashtra Government Gazette, Part IV, Extraordinary on the 18th December 1987.\]](#)

[An Act to Provide for the levy of tax on the entry of motor vehicles into the local areas of the State for use or sale therein.](#)

Whereas both Houses of the State Legislature were not in session;

And Whereas Shri Sharadchandra Krishnaprasad Desai, discharging the functions of the Governor of Maharashtra, was satisfied that circumstances existed which rendered it necessary for him to take immediate action providing for the levy and collection of tax on the entry of motor vehicles into the local areas of the State of Maharashtra for use or sale therein with immediate effect, and for matters connected therewith or incidental thereto; therefore, promulgated the Maharashtra Tax on Entry of Motor Vehicles into Local Areas Ordinance, 1987, on the 30th September 1987;

And Whereas it is expedient to replace the said Ordinance by an Act of the State Legislature; it is hereby enacted in the Thirty-eighth year of the Republic of India as Follows:-

Chapter I

Preliminary

1.

Short title, extent and commencement.

(1)

This Act may be called the Maharashtra Tax on Entry of Motor Vehicles into Local Areas Act, 1987.

(2)

It extends to the whole of the State of Maharashtra.

(3)

It shall be deemed to have come into force on the 30th day of September 1987.

2.

Definitions.

(1)

In this Act, unless the context otherwise requires,-

(a)

"Accessories" means the car air-conditioner, music system and any other article fitted to a motor vehicle and which is not included in the original invoice:

(b)

"Appellate Authority" means an Appellate Authority appointed [under section 5]

[These words and figures substituted for the words and figure 'under section 6' by Maharashtra 8 of 2012, Section 12(1), (w.e.f. 1-5-2012).]

;

(c)

"Appellate Tribunal" means the Maharashtra Sales Tax Tribunal constituted under [section 11 of the Maharashtra Value Added Tax Act]

[These words and figures were substituted for the words and figures 'section 21 of the Bombay Sales Tax Act' by Maharashtra 32 of 2006, Section 27(a)(i).]

;

(d)

"Assessing Authority" means any officer appointed under section 5;

(e)

["Maharashtra Value Added Tax Act" means the Maharashtra Value Added Tax Act, 2002;]

[Clause (e) was substituted, by Maharashtra 32 of 2006, Section 27(a)(ii).]

[(e-a) "designated officer" means an officer designated to be the designated officer under section 10A;]

[Clause (e-a) was inserted by Maharashtra 30 of 1989, Section 2(a).]

(el)

"dealer in motor vehicles" means a person whose principal business is of buying, selling or both buying and selling, motor vehicles;]

[Cause (el) shall be deemed always to have been inserted by Maharashtra 9 of 1988, Section 31.]

(f)

"Entry of Motor Vehicle into a local area" with all its grammatical variations and cognate expressions, means entry of motor vehicle into a local area from any place outside the State but not being a place outside the territory of Union of India, [for use, consumption or as the case may be, sale therein]

[These words were substituted for the words 'for use or sale therein' by Maharashtra 8 of 2012, Section 12(1) and (2), (w.e.f. 1-5-2012).]

;

(g)

"Importer" means a person who brings [or causes to be brought]

[These words were inserted by Maharashtra 30 of 1989, Section 2(b).]

a motor vehicle into a local area from any place outside the State but not being a place outside the territory of Union of India, [for use, consumption or, as the case may be, sale therein]

[These words were substituted for the words 'for use or sale therein' by Maharashtra 8 of 2012, Section 12(1) and (2), (w.e.f. 1-5-2012).]

, and who owns the vehicle at the time of its entry into the local area;

(h)

"Local area" means the area within the limits of:-

(i)

a Municipal Corporation established under the Bombay Municipal Corporation Act, the Bombay Provincial Municipal Corporations Act, 1949 and the City of Nagpur Corporation Act, 1948;

(ii)

a Municipal Council established under the Maharashtra Municipalities Act, 1965;

(iii)

a Zilla Parishad established under the Maharashtra Zilla Parishads and Panchayat Samitis Act, 1961;

(iv)

a Notified area committee or a cantonment board constituted or established under any law for the time being force;

(i)

"motor vehicle" means a motor vehicle as defined in [clause (28) of section 2 of the Motor Vehicles Act, 1988]

[These words brackets and figures were substituted for the words brackets and figures 'clause (18) of section 2 of the Motor Vehicles Act, 1939' by Maharashtra 32 of 2006, Section 27(a)(iii).]

and includes motor cars, motor taxi cabs, motor cycles, motor cycle combinations, motor scooters, moterettee, motor omnibuses, motor vans, motor lorries and chassis of motor vehicles and bodies or tankers built or ment for mounting on chassis of motor vehicles, [* *]

[These words 'but excludes tractors whether on wheels or on tracts' were deleted by Maharashtra 22 of 1988, Section 2.]

;

(j)

"person" includes any company or association or body of individuals whether incorporated or not, and also Hindu undivided family, a firm, a local authority or any State Government;

(k)

"prescribed" means prescribed by rules;

(l)

"purchase value" means the value of a motor vehicle, as ascertained from original invoice and includes the value of accessories fitted to the vehicle, [excise and countervailing duties]

[These words were substituted for the words 'insurance, excise duties, countervailing duties, transport fee, freight, charges and all other charges incidentally levied on the purchase of motor vehicle' by Maharashtra 32 of 2006, Section 27(a)(iv)]

:

Provided that where purchase value of a motor vehicle is not ascertainable on account of non-availability or non-production of the original invoice or when the invoice produced is proved to be false or if the motor vehicles is acquired or obtained otherwise than by way of purchase, then the purchase value shall be the value or price at which motor vehicle of like kind or quality is sold or is capable of being sold, in open market;

(m)

"rules" means rules made under this Act;

(n)

"State" means the State of Maharashtra;

(o)

"tax" means the tax payable under this Act.

(2)

Words and expressions used but not defined in this Act shall have the meanings assigned to them under the [Maharashtra Value Added Tax Act]

[These words were substituted for the words 'Bombay Sales Tax Act', by Maharashtra 32 of 2006, Section 27(b).]

.

Chapter II

Incidence and Levy of Tax

3.

Incidence of Tax.

(1)

Subject to the provisions of this Act and rules made thereunder, there shall be levied and collected a tax on the purchase value of a motor vehicle an entry of which is effected into a local area [for use consumption or as the case may be, sale therein]

[These words were substituted for the words 'for use or sale therein' by Maharashtra 8 of 2012, Section 13, (w.e.f. 1-5-2012).]

and which is liable for registration [or for which an assignment of a new registration mark is required to be obtained]

[These words were inserted and shall be deemed always to have been inserted by Maharashtra 22 of 1998, Section 3(1)(a).]

in the State under [the Motor Vehicles Act, 1988]

[These words and figures were substituted for the words and figures 'Motor Vehicles Act, 1939' by Maharashtra 32 of 2006, Section 28(a).]

at such rate or rates as may be fixed by the State Government by notification in the Official Gazette but not exceeding the rates prescribed for motor vehicles in the Schedules appended to the [Maharashtra Value Added Tax Act]

[These words were substituted for the words 'Bombay Sales Tax Act', by Maharashtra 32 of 2006, Section 28(b).]

or fifteen paise in the rupee whichever is less:

Provided that, no tax shall be levied and collected in respect of a motor vehicle which was registered in any Union Territory or any other State under [The Motor Vehicles Act, 1988]

[These words were inserted and shall be deemed always to have been inserted by Maharashtra 22 of 1998 Section 3(1)(a).]

for a period of [thirty months or more]

[These words were substituted for the words 'fifteen months or more' by Maharashtra 22 of 1988, Section 3(1)(b)(i).]

before the date on which it is registered [or assigned a new registration mark]

[These words were inserted and shall be deemed always to have been inserted by Maharashtra 22 of 1998, Section 3(1)(b)(ii).]

in the State under that Act.

(2)

[The Tax shall be payable and paid by an importer within 15 days from the entry of motor vehicle into the local area or before an application is made for registration of the vehicle [or for obtaining an assignment of a new registration mark therefor]

[Sub-section (2) was substituted by Maharashtra 30 of 1989, Section 3.]

under the Motor Vehicles Act, 1988, whichever is earlier, in the manner laid down under section 10 of this Act:]

(3)

The tax shall be in addition to the tax levied and collected as octroi by a Municipal Corporation, Municipal Council, Zilla Parishad, Panchayat Samiti or Village Panchayat or any other local authority, as the case may be, within its local area:

[Provided that in case of a motor vehicle liable for obtaining a new registration mark, an entry of which has been effected into a local area before the date of publication of the Maharashtra Tax on Entry of Motor Vehicles into Local Areas (Amendment) Act, 1997, in the Official Gazette, the importer shall pay, if not already paid, the tax within a period of 15 days from the said date.]

[This proviso was added by Maharashtra 22 of 1998, Section 3(2)(b).]

4.

Reduction in tax liability.

(1)

[* * *]

[Sub-section (1) was deleted by Maharashtra 32 of 2006, Section 29.]

(2)

The amount of tax leviable under this Act shall subject to such conditions as may be prescribed, be reduced to the extent of the amount of tax paid, if any under the law relating to General Sales Tax [or Central Sales Tax]

[These words were inserted by Maharashtra 29 of 1994, Section 27.]

as may be in force in any other State or Union Territory by an importer who, not being a dealer in motor vehicles, had purchased the motor vehicle for his own use in that State.

Chapter III

Tax Authorities Under the Act

5.

[Assessing, appellate and revising authorities. - (1) The officer appointed by the State Government to be the Commissioner of Sales Tax may, from time to time, by notification in the Official Gazette, appoint such officers to be the assessing officers, revising officers and appellate officers for the purposes of this Act and may assign to them jurisdiction over the whole of the State or such local area or areas as may be specified in the notification.

(2)

No order passed by any of the aforesaid officers before the commencement of the Maharashtra Tax Laws (Levy, Amendment and Validation) Act, shall be deemed to be illegal or void or ever to have become illegal or void by reason only of the fact that the said notification was issued after the passing of the said order.]

[Section 5 was substituted and shall be deemed always to have been substituted by Maharashtra 32 of 2006, Section 30.]

6.

[Appellate authorities].

- [* * *]

[Section 6 was deleted and shall be deemed to have been deleted with effect from 1st April 2006 by Maharashtra 32 of 2006, Section 31.]

Chapter IV

Returns, Assessment, Payment, Recovery and Refund of Tax

7.

Returns.

- [(1) Every person liable to pay tax under this Act shall furnish a return within 15 days from the entry of motor vehicle into the local area or before an application is made for registration of the vehicle [or for obtaining as assignment of a new registration mark therefor]

[Sub-section (1) was substituted by Maharashtra 30 of 1989, Section 4.]

under the Motor Vehicles Act, 1988, whichever is earlier. The return to be so furnished shall be in such form, for such period and to such authority, as may be prescribed]:

[Provided that in case of a motor vehicle liable for obtaining a new registration mark, an entry of which has been effected into the local area before the date of publication of the Maharashtra Tax on Entry of Motor Vehicles into Local Areas (Amendment) Act, 1997 in the Official Gazette, the concerned person liable to pay the tax shall furnish, if not already furnished, the return within a period of 15 days from the said date.]

[This proviso was added by Maharashtra 22 of 1998, Section 4(b).]

(2)

If any person liable to pay tax under this Act, having furnished return under sub-section (1), discovers any omission or incorrect statement therein, he may, furnish a revised return before the expiry of three months from the last date prescribed for furnishing the original return.

7A.

[Electronic filing of return and electronic payment. - (1) Notwithstanding anything contained in this Act, the

Commissioner may, from time to time, by notification in the Official Gazette, specify the period, starting on or after the date mentioned therein and the class or classes of importers,-

(a)

who shall submit application, annexure, appeal, return or such other document as may be required, in an electronic form with or without digital signature, in the manner specified in the said notification;

(b)

who shall pay tax, interest, penalty or any amount due and payable by or under this Act electronically in chalan as prescribed under the rules made in this behalf.

(2)

If the Commissioner has issued any notification under this section, then with a view to promote effective compliance and ensuring compatibility with the automated system, he may provide for amendments to be made to the forms or may introduce new forms of returns, applications, annexures or any other document which is required to be transmitted or submitted electronically.]

[Section 7A was inserted by Maharashtra 8 of 2012, Section 14 (w.e.f. 1-5-2012).]

8.

Assessment.

(1)

The amount of tax due from a person liable to pay tax under this Act shall be assessed separately for such period as may be prescribed.

(2)

If the Assessing Authority is satisfied that the return furnished by a person liable to pay tax, is correct and complete, he shall assess the amount of tax due from the person on the basis of such return.

(3)

If the Assessing Authority is not satisfied that the return furnished by a person liable to pay tax, is correct and complete, and he thinks it necessary to require the presence of the person or the production of further evidence, he shall serve on such person in the prescribed manner a notice requiring him on a date and at a place specified therein, either to attend and produce or cause to be produced all evidence on which the said person relies in support of his return, or to produce such evidence as is specified in the notice. On the date specified in the notice, or as soon as may be thereafter, the Assessing Authority shall, after considering all the evidence which may be produced, assess the amount of tax due from the person.

(4)

If a person fails to comply with the requirements of any notice issued under sub-section (3), the Assessing Authority shall determine the purchase value of the motor vehicle under the proviso to clause (1) of sub-section (1) of section 2 to the best of his judgment, and assess the amount of tax due from him.

(4A)

[if a person liable to pay tax fails to furnish the return as required under section 7, then the Assessing Authority shall at any time within eight years from the end of the financial year in which the motor vehicle was imported, after giving the importer a reasonable opportunity of being heard, assess to the best of his judgement, the amount of tax (if any) due from him.]

[Sub-section (4A) was inserted and was deemed always to have been inserted by Maharashtra 19 of 1996, Section 23.]

(5)

No order of assessment under sub-section (3) or (4) shall be made after the expiry of three years from the last date prescribed for filing of returns of the particular period. If for any reason such order is not made within the period aforesaid then the return so filed shall be deemed to have been accepted as correct and complete for assessing the tax due from such person.

9.

Reassessment.

- If, after a person liable to pay tax has been assessed under section 8 for any period, the Assessing Authority has reason to believe that any purchase value or part thereof has, in respect of that period, escaped assessment, or has been under-assessed or assessed at a lower rate, then the Assessing Authority may, within five years from the date of the order of assessment of the particular period, after giving the person a reasonable opportunity of being heard, may

reassess, to the best of his judgement, the tax due from him.

9A.

[Rectification of mistake. - (1) The Assessing Authority may at any time within two years from the date of any order passed by him, on his own motion, rectify any mistake apparent from the record, and shall within a like period rectify any such mistake which has been brought to his notice by any person affected by such order:

Provided that, no such rectification shall be made if it has the effect of enhancing the tax or reducing the amount of refund, unless the Assessing Authority has given notice, in writing, to such person of his intention to do so and has allowed such person a reasonable opportunity of being heard.

(2)

The provisions of sub-section (1) shall apply to the rectification of a mistake by an Appellate Tribunal or an Appellate Authority [under section 5]

[Section 9A was inserted by Maharashtra 9 of 1997, Section 47.]

as they apply to the rectification of a mistake by the Assessing Authority.]

9B.

[Examination of records. - The revising authority may either on the basis of information received or on its own motion call for and examine the record of any order passed including an order passed in appeal and pass such order thereon as it thinks just and proper within five years from the date of the order to be revised.]

[Section 9B was inserted and deemed to have been inserted with effect from 1st April 2006, by Maharashtra 32 of 2006, Section 32.]

10.

[Payment of tax. - (1) The tax shall be paid in the manner hereinafter provided.

(2)

A person liable to pay tax shall, before furnishing return as required by section (1) of section 7, first pay the whole of the amount of tax due from him according to such return by a demand draft or pay order drawn in favour of Commissioner of Sales Tax, Maharashtra State, on any branch of the State Bank of India or any Scheduled Bank as defined in the Reserve Bank of India Act, 1934, which holds a licence issued by the Reserve Bank of India under section 22 of the Banking Regulation Act, 1949, or of a Co-operative Bank as defined in clause (10) of section 2 of the Maharashtra Co-operative Societies Act, 1960, situated in the local area.

(3)

If a person liable to pay tax furnishes a revised return in accordance with sub-section (2) of section 7, and if such revised return shows that a larger amount of tax than already paid is payable, he shall first pay the additional amount of tax according to such revised return by a demand draft or pay order drawn in favour of Commissioner of Sales tax, Maharashtra State, on any branch of any bank referred to in sub-section (2) which is situated in the local area.

(4)

The amount of-

(i)

tax due where return has been furnished without full payment thereof.

(ii)

difference in the tax assessed under section 8 or reassessed under section 9 for any period and the sum already paid by the person in respect of such period, and

(iii)

penalty, if any, levied under section 14, shall be paid by the person by, such date as may be, specified in the notice issued by the Assessing Authority for this purpose, being a date not earlier than 15 days from the date of service of notice. The amount shall be paid by a demand draft or pay order drawn in favour of Commissioner of Sales Tax, Maharashtra State, on any branch of any bank referred to in sub-section (2) which is situated in the local area.

(5)

Any tax or penalty which remains unpaid after the date specified in the notice for payment, shall be recoverable as an arrear of land revenue, and for that purpose all the Assessing Authorities shall have and exercise all the powers of a Collector under the provisions of the Maharashtra Land Revenue Code, 1966.

10A.

Designated Officer.

- The State Government may, by notification in the Official Gazette, designate such number of officers of the State Government to be the designated officers as may be necessary for the purpose of this Act, and may assign to each one of them such local area or areas or a part of a local area as may be specified in the said notification or by any other like notification.

10B.

Impounding of motor vehicle on import of which tax is not paid.

- [If a person liable to pay the tax fails to pay the same as provided by the provisions of this Act],

[These words were substituted for the portion beginning with words 'If a person' and ending with the words 'whichever is earlier' by Maharashtra 22 of 1998, Section 5.]

then the designated officer, shall forthwith impound the vehicle in respect of which tax has remained unpaid and keep the vehicle impounded till the amount of tax and penalty due and payable is paid in full:

Provided that, if the amount of tax and penalty is not paid within one month of impounding of the vehicle, the designated officer shall have power to sell the vehicle in the prescribed manner, by auction and apply the sale proceeds towards recovery of the tax, penalty and costs. The remainder, if any, shall be refunded to the importer:

Provided further that, if, at any time before the auction of the vehicle, the importer pays the tax, penalty and costs, if any, incurred towards holding the auction, then, the designated officer may, after satisfying that all the dues as aforesaid have been fully paid by the importer, cancel the auction and return the vehicle to the importer.]

[Sections 10, 10A and 10B were substituted for section 10 by Maharashtra 30 of 1989, Section 5]

11.

Refund of tax.

- The Assessing Authority shall refund to a person the amount of tax and penalty, if any, paid by such person in excess of the amount due from him. The refund may be either by cash payment or at the option of the person, by deduction of such excess from the amount of tax and penalty, if any, due from that person in respect of any other period:

Provided that, the Assessing Authority shall first apply such excess towards the recovery of any amount due in respect of which a notice under sub-section (4) of section 10 has been issued, and shall then refund the balance, if any.

12.

Exemptions.

- Subject to such conditions as it may impose, the State Government may if it is necessary so to do in the public interest, by notification in the Official Gazette, exempt any specified class of importers from payment of the whole or any part of the tax payable under this Act or from all or any of the provisions of this Act and such exemption shall take effect from the date of the publication of the notification in the Official Gazette, or such other date as may be mentioned therein.

Chapter V

Appeals

13.

Appeals.

(1)

An appeal from every original order under this Act or rules made thereunder shall lie to the Appellate Authority appointed [under section 5]

[These words and figures substituted for the words and figure 'under section 6' by Maharashtra 8 of 2012, Section 16 (w.e.f. 1-5-2012).]

.

(2)

In the case of an order passed in appeal by the Appellate Authority, a second appeal shall lie to the Appellate Tribunal.

(3)

[(a) No appeal against an order of assessment, with or without penalty or interest, or against an order imposing a penalty or interest, shall ordinarily be entertained by an Appellate Authority or the Appellate Tribunal, unless such appeal is accompanied by satisfactory proof of the payment of the tax with penalty or interest, or, as the case may be, of the payment of penalty or interest, in respect of which appeal has been preferred:

Provided that, an Appellate Authority or Appellate Tribunal may, if it thinks fit, and for reasons to be recorded in writing, entertain an appeal against such order, on payment of not less than twenty-five per cent, of the amount of tax, penalty or interest, in respect of which appeal has been preferred, as the Appellate Authority or Appellate Tribunal may direct.

(b)

No appeal shall be entertained by the Appellate Authority or by the Appellate Tribunal unless it is filed within sixty days from the date of communication of the order appealed against:

Provided that the Appellate Authority or the Appellate Tribunal may, admit an appeal after the period of limitation, if it is proved by the appellant to the satisfaction of the Appellate Authority or, as the case may be the Appellate Tribunal that he had sufficient cause for not preferring the appeal within such period.]

[Sub-section (3) was substituted by Maharashtra 12 of 1995, Section 12.]

(4)

Subject to such rules of procedure as may be prescribed every Appellate Authority (both in the first appeal or the second appeal) shall have the following powers, namely:-

(a)

in an appeal against an order of assessment, it may confirm, reduce, enhance or annul the assessment; or it may set aside the assessment and refer the case back to the Assessing Authority for making a fresh assessment in accordance with the direction given by it and after making such further inquiry as may be necessary the Assessing Authority shall thereupon proceed to make such fresh assessment and determine, where necessary, the amount of tax payable on the basis of such fresh assessment; and

(b)

in any other case, the Appellate Authority or the Appellate Tribunal, as the case may be, may pass such orders in the appeal as it deems just and proper.

Chapter VI

Penalty

14.

Penalty.

(1)

Where any person liable to pay tax under the Act fails to comply with any of the provisions of this Act or rules made thereunder, then, the Assessing Authority may, after given such person a reasonable opportunity of being heard, by order in writing impose on him in addition to any tax payable a sum by way of penalty not exceeding twice the amount of tax.

(2)

[If a person liable to pay tax under this Act does not pay the tax within the time he is required by or under the provisions of this Act to pay it, then he shall be liable to pay by way of simple interest, in addition to the amount of such tax and penalty, if any, under sub-section (1), a sum equal to two per cent, of the amount of such tax for each month or for part thereof, after the last date by which he should have paid such tax.]

[Sub-section (2) was substituted by Maharashtra 19 of 1996 Section 24.]

Chapter VII

Miscellaneous

15.

Officers and servants appointed under this Act to be public servants.

- All officers and servants appointed under this Act shall be deemed to be public servants within the meaning of section 21 of the Indian Penal Code.

16.

Protection of action taken under this Act.

- No suit, prosecution or other legal proceedings shall lie against the Government, or any public servant for anything which is in good faith done or purported to be done under this Act.

17.

Power to make rules.

(1)

The State Government may, by notification in the Official Gazette, and subject to the condition of previous publication, make rule for carrying out the purposes of this Act:

Provided that, if the State Government is satisfied that circumstances exist which render it necessary to take immediate action, it may dispense with the previous publication of any rule to be made under this section.

(2)

In particular and without prejudice to the generality of the foregoing power, such rules may provide for the following matters, namely:-

(a)

the duties and powers of officers appointed for the purpose of enforcing the provisions of this Act:

(b)

all matters expressly required or allowed by this Act to be prescribed:

(c)

generally regulating the procedure to be followed and the forms to be adopted in proceedings under this Act;

(d)

any other matter including levy of fees for which there is no provision or no sufficient provision in this Act and for which provision is, in the opinion to the State Government, necessary for giving effect to the purposes of this Act:

(e)

the procedure for any other matters (including fees), incidental to the disposal of appeal, and the value of court-fee stamp which a memorandum of appeal should bear;

(f)

the person who may appear or attend before any authority in connection with any proceedings under the Act, including his qualifications, the conditions subjects to which the persons shall be entitled to appear and attend and, the form of authorisation authorising such person to attend.

(3)

Every rule made under this Act shall be laid as soon as may be after it is made before each House of the State Legislature while it is in session for a total period of thirty days, which may be comprised in one session or in two successive sessions, and if before the expiry of the session in which it is so laid or the session immediately following both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, and notify such decision in the Official Gazette the rule shall, from the date of publication of such notification have effect only in such modified form or be of no effect, as the case may be, so however, that any such modification or annulment shall be without prejudice to the validity of anything previously done or omitted to be done under that rule.

18.

Amendment of Act IV of 1939,
deleted by Maharashtra 22 of 1998, Section 6.

19.

Repeal of Maharashtra Ordinance VI of 1987 and saving.

(1)

The Maharashtra Tax on Entry of Motor Vehicles into Local Areas Ordinance 1987, is hereby repealed.

(2)

Notwithstanding such repeal anything done or any action taken (including any rule, regulation notification or order issued or any appointment made) under the said Ordinance shall be deemed to have been done or taken, issued or made, as the case may be, under the corresponding provisions of this Act.

Notifications

G.N.F.D. No. ENT.1594/CR 33/Taxation-1 dated, 29th March, 1994 (M.G., Part IV-B, page 573) - In exercise of the powers conferred by sub-section (1) of section 3 of the Maharashtra Tax on Entry of Motor Vehicles into Local Areas Act, 1987 (Maharashtra XLII of 1987) and in suppression of Government Notification, Finance Department, No. ENT. 1593/CR-24/93/Taxation-1, dated the 23rd March 1993, the Government of Maharashtra hereby fixes, with effect from the 1st April 1994 ten and half paise in the rupee to be the rate of tax leviable under the said section 3.

G.N.F.D. No. ENT.1995/CR 63/Taxation-1 dated, 25th August, 1995 (M.G., Part IV-B, page 886) - In exercise of the powers conferred by sub-section (1) of section 3 of the Maharashtra Tax on Entry of Motor Vehicles into Local Areas Act, 1987 (Maharashtra XLII of 1987), and of all other powers enabling it in this behalf and in suppression of the Government Notification, Finance Department, No. ENT. 1594/CR-33/Taxation-1, dated the 29th March 1994 issued in this behalf the Government of Maharashtra hereby fixes with effect from the 1st September 1995 ten paise in the rupee to be the rate of tax leviable under the said section 3.

G.N.F.D. No. ETM.1800/CR 49/Taxation-3, dated 30th June, 2000 (M.G., Part IV-B, page 3) - In exercise of the powers

conferred by sub-section (1) of section 3 of the Maharashtra Tax on Entry of Motor Vehicles into Local Areas Act, 1987 (Maharashtra XLII of 1987), and of all other powers enabling it in this behalf and in supersession of the Government Notification, Finance Department, No. ETM 1800/CR-11/Taxation-3, dated the 1st April, 2000 issued in this behalf the Government of Maharashtra hereby fixes, with effect from the 1st July 2000:-

(a)

four paise in the rupee to be the rate of the tax on the entry of Tractors specifically designed for agricultural use, into the local areas; and

(b)

twelve paise in the rupee to be the rate of the tax on the entry of other motor vehicles, into the local areas, under the said section 3.

G.N.F.D. No. ENT.1406/CR-153/Taxation-1, dated 17th February, 2007 (M.G., Part IV-B, page 360) - In exercise of the powers conferred by sub-section (1) of section 3 of the Maharashtra Tax on Entry of Motor Vehicles into Local Areas Act, 1987 (Maharashtra XLII of 1987), and of all other powers enabling it in this behalf and in supersession of the Government Notification, Finance Department, No. ETM 1800/CR-49/Taxation-3, dated 30th June 2000 issued in this behalf, the Government of Maharashtra hereby fixes-

(a)

four paise in the rupee to be the rate of the tax on the entry of Tractors specifically designed for agricultural use, into the local areas; and

(b)

twelve and a half paise in the rupee to be the rate of tax on entry of motor vehicles, not being tractors specifically designed for agricultural use, into the local areas, under the said section 3.

G.N.F.D. No. ETM 1896/CR-97/Taxation-3, dated 30th August 1996 (M.G., Part IV-B, page 1314) - In exercise of the powers conferred by section 10A of the Maharashtra Tax on Entry of Motor Vehicles into Local Areas Act, 1987 (Maharashtra XLII of 1987), and of all other powers enabling it in that behalf, the Government of Maharashtra hereby designates the Officers mentioned in column (2) of the Schedule appended hereto to be the designated officers for the purposes of impounding of vehicles for enforcing the provisions of section 10B of the said Act,

Schedule

Serial No.

Designation of the Officer

Office Address

(1)

(2)

(3)

1.

The Sales Tax Officer (E-204)

Enforcement Branch, Mumbai.

Room No. 511, 5th Floor, Vikrikar

Mazgaon in Mumbai 400010.

2.

The Sales Tax Officer (E-206)

Enforcement Branch, Mumbai.

Room No. 510, 5th Floor, Vikrikar

Mazgaon in Mumbai 400010.

3.

The Sales Tax Officer (E-211)

Enforcement Branch, Mumbai.

Room No. 502, 5th Floor, Vikrikar

Mazgaon in Mumbai 400010.

4.

The Sales Tax Officer (E-215)

Enforcement Branch, Mumbai.

Room No. 507, 5th Floor, Vikrikar
Mazgaon in Mumbai 400010.

5.

The Sales Tax Officer (E-217)
EnforcementBranch, Mumbai.

Room No. 513, 5th Floor, Vikrikar
Mazgaon in Mumbai 400010.

6.

The Sales Tax Officer (E-219)
EnforcementBranch, Mumbai.

Room No. 512, 5th Floor, Vikrikar
Mazgaon in Mumbai 400010.

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Translation